

2022 Y L R 1474

[Lahore (Rawalpindi Bench)]

Before Jawad Hassan, J

MUHAMMAD DAUD and others---Petitioners

Versus

PROVINCE OF PUNJAB and others---Respondents

Writ Petition No. 147 of 2022, decided on 7th February, 2022.

(a) Constitution of Pakistan---

---Art. 199---Elections Act (XXXIII of 2017), Ss. 17, 19 & 20---Constitutional petition---Commission to delimit constituencies--- Delimitation of constituencies---Principles of delimitation--Maintainability---Factual controversy---Scope---Petitioners challenged the extension of territorial limits of the Cantonment by the Election Commission of Pakistan (ECP)--Validity---Power of de-limitation of constituencies based on geographical compactness and equal distribution of population squarely falls within the exclusive domain of the ECP---Under Chapter-III of the Elections Act, 2017, the ECP has the mandate to delimit constituencies---As per the provisions contained in S. 17 read with S. 19 of the Elections Act, 2017, the ECP can also exercise the powers of delimitation of territorial constituencies by dividing each Province into as many separate territorial constituencies as the number of general seats allocated to that Province as specified in Art. 51 of the Constitution---Moreover, the principles of delimitation are given in S. 20 of the Elections Act, 2017---Petitioners had raised disputed questions of facts in the case and factual controversy could not be resolved by the High Court while exercising jurisdiction under Art. 199 of the Constitution---Election Commission of Pakistan had not exceeded its powers whilst issuing the election schedule strictly in accordance with relevant provisions of the applicable law---Writ petition being not maintainable was dismissed.

Mian Khuda Bakhsh v. Government of Punjab through Secretary Local Government and Community Development Punjab, Lahore and 7 others 2016 YLR Note 75; Gulzar Ahmed Qureshi v. Federation of Pakistan through Secretary, Ministry of Justice, Islamabad and others 1999 MLD 2815 and Abdul Hadi v. Government of Balochistan, Local Government Rural Development through Secretary and 2 others 2014 CLC 1450 ref.

Ghulam Mustafa and 5 others v. Commissioner/Delimitation Authority, D. G. Khan Division, Dera Ghazi Khan and 5 others 2014 YLR 1583 and Syed Maqbool Hussain Shah v. Punjab Local Councils Authority and others 1999 MLD 2813 rel.

(b) Constitution of Pakistan---

---Art. 199---Constitutional jurisdiction---Extraordinary jurisdiction---Scope---Jurisdiction conferred on High Courts under Art. 199 of the Constitution is an extraordinary relief and the same has to be exercised in aid of justice and not to interfere in jurisdictions of other statutory forums unless it is shown that order, action or inaction is in violation of any provision of law or without lawful authority or jurisdiction---In a writ jurisdiction, High Court can only take cognizance when the governmental authority/forum concerned has acted in excess of the powers vested with him/her/it under the relevant law and in absence of the same, High Court cannot embark upon factual inquiry on such issues.

(c) Constitution of Pakistan---

---Art. 199---Constitutional jurisdiction---Factual controversy---Scope---High Court is not to resolve the disputed questions of fact in writ jurisdiction.

Muhammad Asif Chaudhary, Advocate Supreme Court for the Petitioners along with Raja Shahbaz Ahmed Abbasi.

Mujeeb-ur-Rehman Kiayani, Additional Advocate General Punjab for Respondent No.1.

Malik Ahtesham Saleem, Assistant Attorney General for Respondents Nos. 2, 3 and 6 to 8.

Arif Mehmood Butt for Respondent No. 4.

Zulqarnain Haider, Law Officer for Election Commission of Pakistan.

ORDER

JAWAD HASSAN, J.---Through this writ petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioners have challenged the extension of territorial limits of the Cantonment Kamra being violative to the provisions of Section 4 of the Cantonments Act, 1924 (the "Cantonments Act") by impugning the Notification dated 24.12.2021 issued by Respondent No.6, the Election Commission of Pakistan (the "ECP") under Section 228 of the Elections Act, 2017 (the "Elections Act") read with Section 72 of the Cantonments Ordinance, 2002 (the "Ordinance") and Rules 8, 9 and 14 of the Cantonments Local Government (Election) Rules, 2015 (the "Rules"), whereby a schedule for the purpose of conducting bye-election among others, in wards Nos.1 to 5 of Kamra Cantonment District Attock has been issued.

II. PETITIONER' SUBMISSIONS

2. Mr. Muhammad Asif Chaudhary, Advocate Supreme Court submits that during the course of elections of the Cantonment Board Kamra Cantt, its territorial limits were illegally and unlawfully extended, whereby certain Union Councils and Villages were also shown to be part of the Cantonment Board and were also subjected to de-limitation as wards Nos.1 to 5 of the Cantonment Board. He further submits that pursuant to the aforesaid unauthorized, illegal and unlawful extension of the Cantonment Area, officials of the Cantonment Board embarked upon

persecuting the petitioners and other inhabitants of the aforesaid villages with different tactics, like interference into their day to day life; compelling to remove the cattle sheds; restraining to use the grazing fields; restricting cultivation of crops with harvesting; prohibiting free movement on the public passages and also raising demand of property tax with restrictions on construction. He states that the Petitioners along with other residents of the villages approached the concerned authorities against the aforesaid illegal act by moving various applications for remedial measures in terms of the correction of record so as to exclude the areas of the villages from the territorial jurisdiction of the Cantonment Board, but none of those applications were decided and, in the meanwhile, the schedule of elections of the Cantonment Board was given by the ECP within the area of the Cantonment Board, Kamra and, for that purpose, Union Council Shamsabad with its villages and Union Council Tajik with its villages were shown to have been delimited as ward Nos.1 to 5 of the Cantonment Board for the purpose of election scheduled to be held on 12.09.2021. He maintains that no person from the above said villages and union councils participated in the elections voluntarily and, having been persuaded by the executive officer and other officials of the Cantonment Board, only sixteen persons filed their nomination papers, however; subsequently they also withdrew their nomination papers realizing the fact that limits of the Cantonment Board were stretched illegally and unlawfully for serving nefarious designs and motives of the officials of the Cantonment Board. Mr. Muhammad Asif Chaudhary, Advocate Supreme Court submits that now in sheer violation of the legal and factual position as discussed above, the ECP has again issued the impugned Notification dated 24.12.2021 announcing a schedule for the purpose of bye elections among others, in ward Nos.1 to 5 of Kamra Cantonment, District Attock, which is illegal being against the provisions of the Ordinance, the Rules and the Election Act. Reliance is placed on the judgments reported as Pakistan Industrial and Intellectual Property Rights Association "PIPRIA" through Home Secretary and 2 others v. Secretary, Ministry of Commerce, Government of Pakistan, Islamabad and another (2002 CLD 773) and Zila Council, Bahawalpur v. Cantonment Board, Bahawalpur (1988 MLD 1415).

III. RESPONDENTS' SUBMISSIONS

(a) Arguments of Learned Additional Advocate General Punjab

3. Learned Additional Advocate General Punjab submits that the Respondents Nos.1(i) to (v) have performed their duties with due diligence and the matter does not belong to them, rather it relates to the Cantonment Board and the ECP, therefore, stance of the concerned hierarchy of the Cantonment Board and the ECP is necessary for proper disposal of the issue in hand.

(b) Arguments of Learned counsel for the Cantonment Board (Respondent No.4)

4. Mr. Arif Mehmood Butt, Advocate has objected to the maintainability of this petition by stating that previously similar issue was raised by different residents of same villages in Writ Petitions Nos.539/2012, 3172/2012, 3274/2014 and 157/2015, which were dismissed by this Court, vide order dated 28.11.2018. He further submits that the Petitioner has filed the instant petition on the same issue despite the fact that the matter is still pending before the concerned Civil Court at Attock. He maintains that earlier the matter was discussed in detail between Respondent No.4/Cantonment Board and the representatives of the aforesaid villages and, for

their satisfaction, an agreement dated 14.02.2018 (the "Agreement") was also executed between them. He explains that, as per the Agreement, expenses of the resurvey were borne by the Cantonment Board and the Deputy Commissioner, Attock also wrote a letter dated 14.02.2018 to this effect to the Director General Survey of Pakistan (the "SOP"), Rawalpindi. Then, pursuant to the Agreement, officials of the SOP conducted the demarcation of the boundaries of the Cantonment Board and supported the versions of Respondent No.4 but the residents of the aforesaid villages disregard to the Agreement, filed civil suits against them before the concerned Civil Court. He pleads that Respondent No.4 is performing its duties within the four corners of law and no violation of Section 3 or 4 of the Cantonment Act, was ever made by them.

(c) Arguments of Learned Counsel for the ECP (Respondents Nos.6 to 8)

5. Mr. Zulqarnain Haider, Law Officer contends that the Petitioners have not approached this Court with clean hands because they do not deserve any equitable discretionary or legal relief whatsoever at any form. He next contends that the ECP has powers to delimit the constituencies and to conduct the local bodies election under the Ordinance read with the Election Act. He next contends that the ECP has rightly issued the impugned Notification dated 24.12.2021 for the purpose of bye-election to fulfill the vacant seats in the constituency of the Cantonment Board as per the scheme of law provided under the law and the instant petition is liable to be dismissed with compensatory cost.

6. I have heard arguments of learned counsel for the parties and perused the record.

IV. DETERMINATION BY THE COURT

7. Admittedly, the power of de-limitation of constituencies based on geographical compactness and equal distribution of population squarely falls within the exclusive domain of the ECP and this Court cannot interfere in such like matters. Under Chapter-III of the Election Act, the ECP has the mandate to delimit constituencies. As per the provisions contained in Section 17 read with Section 19 of the Elections Act, the ECP can also exercise the powers of delimitation of territorial constituencies by dividing each Province into as many separate territorial constituencies as the number of general seats allocated to that Province as specified in Article 51 of the Constitution. Moreover, the principles of delimitation are given in Section 20 of the Elections Act. The Petitioners have raised disputed questions of facts in this case and factual controversy cannot be resolved by this Court while exercising jurisdiction under Article 199 of the Constitution. It is well settled by way of plethora of case law developed by the superior Courts in various pronouncements that the High Court is not to resolve the disputed question of fact in writ jurisdiction. In this regard, reference can be made to the cases cited as *Mian Khuda Bakhsh v. Government of Punjab through Secretary Local Government and Community Development Punjab, Lahore and 7 others* (2016 YLR Note 75), *Ghulam Mustafa and 5 others v. Commissioner/Delimitation Authority, D. G. Khan Division, Dera Ghazi Khan and 5 others* (2014 YLR 1583), *Syed Maqbool Hussain Shah v. Punjab Local Councils Authority and others* (1999 MLD 2813), *Gulzar Ahmed Qureshi v. Federation of Pakistan through Secretary, Ministry of Justice, Islamabad and others* (1999 MLD 2815) and *Abdul Hadi v. Government of Balochistan, Local Government Rural Development through Secretary and 2 others* (2014 CLC 1450). In *Ghulam Mustafa Case* (supra), wherein the question of delimitation of Union Councils

was specially raised and this Court declined to interfere in the delimitation process of Union Councils and wards at such stage when the entire process of delimitation was already finalized by the competent authorities and election schedule had also been announced. Similarly, in Syed Maqbool Hussain Shah Case (supra), this Court held that question of geographical contiguity and compactness could not be agitated before the High Court in a Constitutional petition. It has also been observed by this Court in Haji Faqir Bakhsh Case (supra) that delimitation process is carried out in view of the compactness of blocks and for the best interest of the local community by the concerned authority of exclusive jurisdiction after prudent appraisal of the evidence as well as the relevant material, thus, calling for no interference by this Court.

8. As regard the contention of learned counsel that the impugned Notification dated 24.12.2021 issued by the ECP is illegal and without lawful authority, from perusal of the said Notification it depicts that the ECP has not exceed its powers whilst issuing the election schedule strictly in accordance with relevant provisions of the applicable law (the Election Act, Ordinance and the Rules). The jurisdiction conferred on the High Courts under Article 199 of the Constitution is an extraordinary relief and the same has to be exercised in aid of justice and not to interfere in jurisdictions of other statutory forums unless it is shown that order, action or inaction is in violation of any provision of law or without lawful authority or jurisdiction. In a writ jurisdiction, this Court can only take cognizance when the governmental authority/forum concerned has acted in excess of the powers vested with him/ her/it under the relevant law and in absence of the same, this Court cannot embark upon factual inquiry on such issues.

9. In view of what has been discussed above, this writ petition is not maintainable and is dismissed accordingly.

SA/M-78/L Petition dismissed.